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File No.: EXP202305139

Warning Procedure No. PA/00010/2023

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RESOLUTION OF

WARNING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 1, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant alleges that the respondent is their neighbor, who has installed a video surveillance system with 3 moving cameras in their residence located at ***ADDRESS.1, which, due to their location and orientation, are capable of capturing images of areas outside the respondent's residence, including those of the complainant's private residence, without their authorization.

Along with the complaint, 4 photographs are submitted showing only the location of the cameras on the roof of a house, with the field of vision being unknown.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to provide certain documentation and data to this Agency regarding their video surveillance system within a month, in order to verify whether it complies with the requirements set forth in data protection regulations.

Among other documents and information, it is requested that photographs of the monitor or camera showing the field of vision where the cameras record be provided, as well as the retention period of the recordings, identification of the responsible party, and photos of the information sign regarding the video surveillance area with the data required by Articles 12 to 14 of the GDPR.

THIRD: On June 2, 2023, the respondent submitted a written statement through a representative, indicating, in summary, the following:

- They provide a contract signed with PROSEGUR to manage the system.
- They provide a photo showing two information signs: one informing about the alarm system with PROSEGUR, and the one warning of the existence of the video surveillance system referred to in the requirement, which does not identify the data controller, nor does it state where to obtain additional information or how to exercise the rights provided for in the GDPR.
- Photographs of various cameras installed by the property are provided, without providing the recordings made by them.

FOURTH: Not having provided all the required information, further information was requested from the respondent on June 5, 2023, with the following text:

"- Indicate the number of cameras in the surveillance system, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used for viewing the images, in which the areas within the field of vision of the cameras can be appreciated. The cameras must not, under any circumstances, record or allow the viewing of adjacent lands that are not owned by them, nor the interior of homes or any other private or reserved space, nor of the public road, except for the portion of the public road minimally necessary for the intended security purpose. It is worth noting that sometimes it is sufficient to reorient the device so that its field of vision is modified and captures exclusively their property; other times, the camera cannot be relocated, and then privacy masks can be introduced to hide or obscure the areas that the cameras cannot capture.

- If the cameras capture public road, even minimally, they must also provide photographs of the sign or signs that warn of the existence of a video surveillance area, in which the information contained in the sign (responsible: B.B.B. and their address) is clearly visible, as well as its location."

FIFTH: On June 26, a new written statement was submitted in response to the request, in which:

- It is indicated that they have four cameras: three external and one internal, and that the external ones are fixed but are activated by movement, remaining in standby during periods of inactivity in their field of vision.
- It is stated that the Civil Guard has attended on several occasions, verifying the legality of the system, although this is not evidenced.
- Photographs of the recordings are provided.

SIXTH: On July 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SEVENTH: On October 3, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 a) of the GDPR, and the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 b) of the GDPR.

EIGHTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was

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received on 07/11/2023, as stated in the acknowledgment of receipt in the file.

NINTH: On November 22, 2023, a written submission was received from Rubén Barrios Iglesias, in which he presents allegations, requests the complete transfer of the claim, and the practice of evidence on behalf of the claimed party without proving his representation.

TENTH: On January 15, 2024, a complete copy of the claim, along with its attached photographs, was sent to the claimed party.

ELEVENTH: On January 15, 2024, proof of representation was requested from Rubén Barrios Iglesias, informing him that the copy had been sent to the claimed party.

TWELFTH: On January 30, 2024, a document was submitted providing a notarized power of attorney designating Mr. Barrios Iglesias as the legal representative to act on behalf of the claimed party, thus confirming the representation, acknowledging receipt of the allegations and request for evidence made by him on November 22, 2023.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: That as of the date of the claim filed by the claiming party - a neighbor of the building adjacent to the private residence of the claimed party - the claimed party had installed four cameras in his residence: three external and one internal, which are fixed but are activated by movement, remaining inactive during periods of inactivity in their field of vision. From the photographs provided by the claimed party, it is evident that the external cameras are capturing areas outside of his property, as it is clearly visible that there are fences and the external land can be appreciated. As of the date of this resolution, the claimed party has not proven that he has remedied this situation.

SECOND: That as of the date of the claim filed, the claimed party had placed a sign on his facade warning of the alarm system by the company PROSEGUR, but the sign warning of the existence of an operational video surveillance system was incomplete, as it did not include either the identity of the responsible party or the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, nor where to obtain more information about the processing of personal data, in order to make effective the interested party's right to the content of the so-called "second layer" of information regarding the processing of these recordings. After the agreement to initiate this procedure, the claimed party has remedied this infringement by placing, through PROSEGUR, the relevant

informative sign that contains all the information required by the regulations.

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LEGAL GROUNDS

I

Competence and Applicable Regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligations Regarding Video Surveillance

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

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In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD establishes a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. In the event that the monitored space has several entrances, the distinctive sign of the video-monitored area must be placed at each of them.

This information must be provided in advance - Recital 39 of the GDPR. The aim is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

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That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intent to intimidate them or affect their private sphere without a justified cause is not permitted.

Images in spaces owned by third parties may not be captured or recorded without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

Likewise, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties provided for in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD must be complied with.

In this regard, it establishes a "layered information" system in relation to video surveillance.

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The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information of the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principle of proportionality and the principle of data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

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- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in cases of conducting low-risk data processing, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum indicative security measures.

III

Response to the allegations

Analyzing the background present in this file, it has been established that the respondent has incurred in two breaches of the regulations applicable to video surveillance systems that would constitute the commission of two different administrative infractions:

- Firstly, for capturing excessive images outside the territory of their property, since in the photographs provided by the respondent themselves, which reflect the field of vision of the external cameras, it is observed that they are capturing external lands beyond their property, as it is clearly visible that there are fences and the external land beyond them can be appreciated, exceeding what is permitted. Therefore, the capture would not be proportional and in accordance with the regulations stated, constituting a possible breach of Article 5.1.c) for violating the principle of data minimization, since the monitors must capture images limited to the interior space up to the fence, and the part of the public road strictly necessary to capture the entrance.

- Secondly, for having a video surveillance device without complying with the information duty required by the regulations, since the information sign that was placed on their facade - at the request of the respondent - did not contain the data required by Articles 12 of the GDPR and 22 of the LOPDGDD, since despite indicating with signs the sections of the identity of the controller, and ways to exercise their rights, and obtain additional information, the respondent had not filled in or completed the necessary data, leaving it blank. This lack of information persisted, at least, from the filing of the complaint on 1/04/23 until the respondent rectified this breach, complying with what was indicated in the initiation agreement of this procedure, as has been evidenced by the photographs provided in document 2 of their allegations of November 22, 2023.

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The allegations presented and the attached documentation cannot be upheld for the following reasons:

1.

Regarding the certification by PROSEGUR ALARMAS, S.L. of the installation of an alarm system that included the installation of the surveillance cameras provided as Document 1.

It should be noted that, according to the certification provided, the hiring of a security system involved merely the installation of an alarm and surveillance cameras, with the delivery of informative signs that the defendant was required to complete, as it is the sole responsible party for the processing of personal data that occurs when recordings are made in accordance with the provisions of Article 4.7 of the GDPR, and not the installing company.

As the defendant is the only responsible party for the processing, it was solely their duty to ensure that the signs contained the information based on the dual-layer information system, being also the only one who could provide this data regarding the identity of the responsible party, and the means to exercise their rights of access, rectification, deletion, etc., as well as where to obtain more information about the processing of personal data.

2.

Regarding the renewal of the informative signs by the installing company, it should be indicated that the infringement concerning the lack of sufficient information is considered remedied, but this remedy is an obligation of the responsible party for all processing that may prevent them from incurring new administrative infringements with recurrence in the future, but does not exempt them from the commission of the infringement referred to in this procedure, which is already considered consummated.

3.

Regarding the excessive nature of the captured images, there are insufficient reasons provided to consider that the infringement of Article 5.1(c) of the GDPR has not been committed.

Firstly, it is alleged but not proven by the defendant that the cameras are activated by movement when it occurs inside their property, but this does not match the images from the field of view of the external

cameras that were submitted by them to the file, in which the fence and the adjoining land, which exceeds the property of the claimant, are clearly visible.

Furthermore, there is no evidence that this situation has been remedied currently, through the submission of new images from the field of view that allow for observation that they have redirected the cameras or have placed privacy masks to avoid capturing areas of public roads or third-party property, so the infringement persists at present, seeming to understand the defendant that they have the right to make these recordings of land that is not theirs, to protect themselves from the alleged "attacks" they receive.

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by their neighbors, whom they have reported on various occasions for various crimes against their property and person.

Thus, the respondent refers to the claimant in the following terms:

"This party informs the agency to which I am addressing of the manifest hostility existing between the parties, whose properties border each other. The claimant, with the intent to undermine the tranquility of their neighbors at home, throws sharp objects, stones, and food scraps onto the property of the undersigned, which is why this party decided at the time to install a video surveillance system. For illustrative purposes, Document No. 3 is attached, which is the initiation report for the complaint dated 04/04/2023 of the facts presented to the Civil Guard.

However, the truth is that to determine whether the respondent violated Article 5.1.c) of the GDPR, it is irrelevant what relationship they maintain with the claimant, and their previous conflicts-reports must be resolved through channels outside the jurisdiction of this Agency.

Documents 3 and 4 provide two reports from the Civil Guard, in which damages to their property are reported: (i) on 04-08-21, and on 04-10-21, with the Civil Guard having visited their property on the second of these dates to verify those damages through an ocular inspection report, which is not recorded as having been done on the first occasion; and (ii) on 02-04-23, in which the brother-in-law of the respondent is reported, who appears to be their neighbor and has a marital relationship with the claimant, asserting that he was throwing eggs, tiles, and other objects at their property, impacting one of them with their vehicle and causing damage, without an ocular inspection report being provided by the agents.

From the complaints filed - the acceptance for processing of which is unknown - it can be inferred a priori that the purpose of installing the video surveillance system pursued by the respondent is to preserve the security of their home and goods located on their property and to identify those responsible who allegedly threaten it. Based on this, it is understood that its installation was initially justified, being lawful according to the provisions of Article 6 of the GDPR, as long as the system also complied with the principles and requirements established in data protection and video surveillance matters, which did not occur, since, as will be analyzed further on, the respondent ended up violating the Principle of data minimization by capturing excessive images that were neither necessary nor appropriate to protect this security.

While the concern of the respondent is understandable, it must be clarified that having been a victim of previous damages and the occurrence of a high risk of their repetition is not an excuse to install a system that violates data protection regulations, as stated, since they could have positioned the field of vision of the cameras to focus on their property and the fences, without recording images of the land belonging to others.

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This authority cannot assess the reported criminal offenses nor take them into account, unless they

are established as proven facts in a final judgment, provided that they are relevant for determining the infractions and sanctions subject to this procedure. It is only the police authorities and/or the judicial authorities that should assess who the alleged responsible parties were and judge the intention of the claimant referred to by the respondent, if applicable.

This sanctioning procedure is not the appropriate forum to evaluate the intentions of the claimants/reporters, as its purpose is limited to assessing the proven facts contained in the claims or reports and analyzing whether there is administrative liability for violating personal data protection regulations.

Finally, the respondent maintains that the claimant has recently installed cameras pointing at their property, which does not exempt them from their own responsibility for capturing excessive images, since if this accusation is true, it should be the subject of a new independent procedure against those responsible for installing this system, provided that it is demonstrated that the field of vision is capturing excessive images, whether from the private land of the respondent or from public thoroughfare.

IV

On the dismissal of the proposed evidence

In their written allegations, the respondent requests a copy of the claim - which was sent to them on January 15, 2023 - and the practice of evidence, in the following terms expressed in the third section of their written allegations:

“The Civil Guard has visited the residence on several occasions verifying the legality of the system. Therefore, we request that the Civil Guard of Cuntis be required to provide the reports from June 2022 and November 2022 drafted after the agents' visit.”

Regarding the agreement on evidence, the provisions of Article 77 of Law 39/2015, of October 1, on Common Administrative Procedure, shall apply, which establishes the following:

“Article 77. Means and period of evidence.

1. Relevant facts for the decision of a procedure may be proven by any admissible means of evidence in law, whose assessment will be carried out in accordance with the criteria established in Law 1/2000, of January 7, on Civil Procedure.
2. When the Administration does not consider the facts alleged by the interested parties to be certain or the nature of the procedure requires it, the instructor of the same will agree to open a period of evidence for a period not exceeding thirty days nor less than ten, so that as many as they deem pertinent may be practiced. Likewise, when deemed necessary, the instructor, at the request of the interested parties, may decide to open an extraordinary period of evidence for a period not exceeding ten days.
3. The instructor of the procedure may only reject the evidence proposed by the interested parties when they are manifestly inappropriate or unnecessary, through a reasoned resolution.
- 3 bis. When the interested party alleges discrimination and provides well-founded indications of its existence, it will correspond to the person to whom the discriminatory situation is attributed to provide an objective and reasonable justification, sufficiently proven, of the measures adopted and their proportionality.

For the purposes of the provisions of the previous paragraph, the administrative body may request a report from the competent public bodies in matters of equality.

4. In sanctioning procedures, the facts declared proven by final criminal judicial resolutions will bind the Public Administrations regarding the sanctioning procedures they substantiate.
5. The documents formalized by officials recognized as authorities and in which, observing the corresponding legal requirements, the facts established by them are recorded will serve as proof of these unless proven otherwise.
6. When the evidence consists of the issuance of a report from an administrative body, public body, or public law entity, it will be understood that it has a mandatory nature.
7. When the assessment of the evidence practiced may constitute the basic foundation of the decision to be adopted in the procedure, as it is an essential piece for the correct evaluation of the facts, it must be included in the resolution proposal.”

In the present case, the evidence requested by the respondent - in addition to being impossible to carry out, as its practice required more detail about the exact date of the reports to be requested from the Civil Guard - must be inadmissible for being unnecessary and inappropriate to prove the facts attributed.

Unnecessary because it is already established that, as of the date of the claim, the informative sign of the video surveillance system was incomplete, and the field of vision of the exterior cameras was capturing the exterior of the respondent's residence, which is deduced from the photographs provided by the respondent on June 26, 2023, in response to the transfer made by this Agency. It should also be noted that the reports whose request is made have not been provided by the respondent themselves, who should have a copy of them, just as they obtained them in connection with the two reports submitted as documents 3 and 4, regarding which a copy of an inspection report conducted by the Civil Guard agents when the report was filed on October 4, 2021, has even been attached.

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Y furthermore, in addition to being unnecessary, the practice of this evidence can be dismissed as improper, since even if it were true that the Civil Guard visited the domicile of the party being claimed, following the complaint of the claiming party, in June and November 2022, verifying that the video surveillance system did not capture excessive images and had the informational signs properly filled out, this would have only served to demonstrate the legality of the system at a specific date and time, prior to the reported events being processed in this file, which date from 1-4-23.

V

Typification and qualification of the infringement

From the above in the previous Legal Basis, it can be concluded that, in accordance with the available evidence, it is considered that the party being claimed has committed the following infringements of the current regulations on data protection and video surveillance systems:

1.

Infringement of the principle of data minimization provided in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.” This has not been remedied to date.

2.

Infringement of the duties of information regarding data provided in Article 13 of the GDPR, in accordance with the provisions of Article 22 of the LOPDGDD. This has been remedied after the initiation agreement of the same.

For the purposes of the statute of limitations for the infringements, the two infringements attributed prescribe after three years, in accordance with Article 72 of the LOPDGDD, which states:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679(...).

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law(...).”

VI

Warning

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Without prejudice to the provisions of Article 83 of the GDPR, this Agency, acting as the supervisory authority, has the power to issue a warning, in accordance with the provisions of the aforementioned Regulation, which states in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

For its part, Recital 148 of the GDPR indicates:

"In order to reinforce the application of the rules of this Regulation, any infringement of it must be punished with sanctions, including administrative fines, in addition to appropriate measures imposed by the supervisory authority under this Regulation, or in substitution for these. In the case of a minor infringement, or if the fine that is likely to be imposed constitutes a disproportionate burden for a natural person, a warning may be issued instead of a fine. However, special attention must be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant previous infringement, the manner in which the supervisory authority became aware of the infringement, compliance with ordered measures against the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstance. The imposition of sanctions, including administrative fines, must be subject to sufficient procedural guarantees in accordance with the general principles of Union Law and the Charter, including the right to effective judicial protection and to a process with all guarantees."

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe. The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall lapse, and consequently, the proceedings shall be archived.

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The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

In the present case, considering the circumstances present in this procedure and following the interpretative criterion regarding the justification of the warning introduced by Recital 148 of the GDPR previously transcribed, according to which when the fine that would likely be imposed constitutes a disproportionate burden for a natural person, a warning may be imposed instead of the fine, it is deemed appropriate to issue a warning for the infringement of the violated article.

It is noted, however, that in the event of continued commission of the infringements committed, a sanctioning procedure may be initiated with the aggravating factor of recidivism, in which the imposition of a fine may be agreed upon.

VII

Adoption of measures

Considering the declared infringements, in accordance with the provisions of Article 58.2 of the GDPR, the following measure shall be imposed on the responsible party to adjust their video surveillance system to current legality:

Proof of having removed, modified, or redirected all external cameras installed on their property, in such a way that the viewing of the images evidences that public or private areas are not captured,

providing, if applicable, photos of the field of vision of the same within 1 month from the notification of this resolution.

In this regard, it is very useful/advisable to place privacy masks on external cameras that focus on areas outside the property of the respondent, as these allow for the concealment of parts whose images should not be captured.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES

FIRST: TO DISMISS THE EVIDENCE PROPOSITION submitted on November 22, 2023, as it is inappropriate and unnecessary, for the reasons provided in Legal Basis IV of this Resolution.

SECOND: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1:

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- For the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR.

- For the alleged infringement of Article 13 of the GDPR, classified in Article 83.5.b) of the GDPR.

FOURTH: TO ORDER B.B.B., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, to provide proof of compliance with the measure indicated in Legal Basis VII within 1 month from the date this resolution becomes final and enforceable.

FIFTH: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1.

SIXTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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